OMB No. 1513-0020

FOR TTB USE ONLY

TTB ID

DEPARTMENT OF THE TREASURY
ALCOHOL AND TOBACCO TAX AND TRADE BUREAU
APPLICATION FOR AND CERTIFICATION/EXEMPTION OF LABEL/BOTTLE APPROVAL

(See Instructions and Paperwork Reduction Act Notice Below)

1. REP. ID. NO. *(If any)* | CT | OR

2. PLANT REGISTRY/BASIC PERMIT/BREWER'S NO. (Required)
DSP-KY-21034

3. SOURCE OF PRODUCT *(Required)*
☐ Domestic ☑ Imported

4. SERIAL NUMBER *(Required)*

YEAR		-				
2	4	-	0	4	2	0

5. TYPE OF PRODUCT *(Required)*
☐ WINE
☑ DISTILLED SPIRITS
☐ MALT BEVERAGES

6. BRAND NAME *(Required)*
OLD TOM DISTILLERY

7. FANCIFUL NAME *(If any)*

PART I - APPLICATION

8. NAME AND ADDRESS OF APPLICANT AS SHOWN ON PLANT REGISTRY, BASIC PERMIT, OR BREWER'S NOTICE. INCLUDE APPROVED DBA OR TRADENAME IF USED ON THE LABEL *(Required)*
ATLANTIC SPIRITS CO., NEWARK, NEW JERSEY 07102

8a. MAILING ADDRESS, IF DIFFERENT

9. FORMULA

10. GRAPE VARIETAL(S) *Wine only*

11. WINE APPELLATION *(If on label)*

12. PHONE NUMBER

13. EMAIL ADDRESS

14. TYPE OF APPLICATION *(Check applicable box(es))*
a. ☐ CERTIFICATE OF LABEL APPROVAL
b. ☐ CERTIFICATE OF EXEMPTION FROM LABEL APPROVAL *"For sale in _____ only" (Fill in State abbreviation)*
c. ☐ DISTINCTIVE LIQUOR BOTTLE APPROVAL. TOTAL BOTTLE CAPACITY BEFORE CLOSURE_____ *(Fill in amount)*
d. ☐ RESUBMISSION AFTER REJECTION TTB ID_____

15. SHOW ANY INFORMATION THAT IS BLOWN, BRANDED, OR EMBOSSED ON THE CONTAINER *(e.g., net contents)* ONLY IF IT DOES NOT APPEAR ON THE LABELS AFFIXED BELOW. ALSO, SHOW TRANSLATIONS OF FOREIGN LANGUAGE TEXT APPEARING ON LABELS.

PART II - APPLICANT'S CERTIFICATION

Under the penalties of perjury, I declare: that all statements appearing on this application are true and correct to the best of my knowledge and belief; and, that the representations on the labels attached to this form, including supplemental documents, truly and correctly represent the content of the containers to which these labels will be applied. I also certify that I have read, understood, and complied with the conditions and instructions which are attached to an original TTB F 5100.31, Certificate/Exemption of Label/Bottle Approval. I consent to the return of processed applications in the manner indicated on this application and set forth in the applicable instructions.

16. DATE OF APPLICATION | 17. SIGNATURE OF APPLICANT OR AUTHORIZED AGENT | 18. PRINT NAME OF APPLICANT OR AUTHORIZED AGENT

PART III - TTB CERTIFICATE

This certificate is issued subject to applicable laws, regulations, and conditions as set forth in the instructions portion of this form.

19. DATE ISSUED | 20. AUTHORIZED SIGNATURE, ALCOHOL AND TOBACCO TAX AND TRADE BUREAU

FOR TTB USE ONLY

QUALIFICATIONS

EXPIRATION DATE (If any)

AFFIX COMPLETE SET OF LABELS BELOW *(See General Instructions 4 and 6)*

I. PURPOSE OF THIS CERTIFICATE

This certificate authorizes you to bottle and remove the product identified on the certificate from the plant(s) identified on the certificate where it was bottled or packed, or to remove products in containers from Customs custody. NOTE: This certificate does not constitute trademark protection.

II. CONDITIONS OF THIS CERTIFICATE

A. This certificate does not relieve you from liability for violations of the Federal Alcohol Administration Act, the Alcoholic Beverage Labeling Act of 1988, the Internal Revenue Code of 1986, or related regulations and rulings.

B. You must ensure that: 1) all the information on your application is true and correct and 2) any and all information (including words, text, illustrations, graphics, etc.) shown or presented on the label(s) affixed to this certificate is truthful, accurate and not misleading.

C. The Alcohol and Tobacco Tax and Trade Bureau (TTB) does not routinely review submitted labels for compliance with applicable requirements for mandatory label information regarding type size, characters per inch, or contrasting background. You must ensure that the mandatory information on the actual labels is legible and displayed in the correct type size, number of characters per inch, and on a contrasting background in accordance with the TTB labeling regulations, 27 CFR parts 4, 5, 7, and 16, as applicable. TTB does reserve the right to review applications for compliance with these requirements and to return noncompliant applications.

III. INSTRUCTIONS FOR COMPLETING AND SUBMITTING THIS APPLICATION

NOTE: Applications may be filed electronically by accessing the TTB website at https://www.ttbonline.gov/ttbonline/.

A. GENERAL INSTRUCTIONS

1. You must print or type your application and sign it in ink. Submit your application in duplicate to the ALCOHOL LABELING AND FORMULATION DIVISION, ALCOHOL AND TOBACCO TAX AND TRADE BUREAU, 1310 G STREET NW., BOX 12, WASHINGTON, DC 20005. (paper filers only)

2. You may use exact copies of TTB F 5100.31 in lieu of an original form. Copies do not have to include the instruction page; however, you remain subject to all the provisions and instructions outlined on the form. We suggest that you use an original form whenever possible. This form may be electronically accessed at the TTB website at https://www.ttb.gov/forms/f510031.pdf.

3. Generally, the person, firm, or corporation who will bottle or pack the product must file the application. However, for a product to be imported in containers intended for sale at retail, the application must be filed by the importer. In the case of a product to be relabeled by a wholesaler, the application must be filed by the wholesaler.

4. You must firmly affix (with glue or tape - DO NOT STAPLE) all labels that will appear on the container. Printer's proofs and photocopies are acceptable. If labels are in the form of can flats, photocopies are requested. (paper filers only)

5 . You may NOT make pen and ink changes, white out information, type over or cross out information, or paste information over labels affixed to this application. (Paper filers only)

6. You must reduce oversized labels so that they fit in the space provided. You must indicate in Item 19 that labels have been reduced and the percentage of reduction.

B. SPECIFIC INSTRUCTIONS

ITEM 1. Include a third party representative ID Number if your application will be submitted by a third party representative, and if you consent to the disclosure of information about the application to this representative, as well as the return of the processed application to this representative. Third party filers who do not already have a representative ID Number, please contact TTB to obtain one. (See section IV for contact information.)

ITEM 2. For bonded wine cellars, taxpaid wine bottling houses, and distilled spirits plants, enter the applicable registry number (BW- or TPWBH- or DSP- number). Importers must enter the TTB basic permit number and brewers must enter the brewer's notice number. Wholesalers applying to relabel must enter the wholesaler's basic permit number. If you intend to bottle this product at more than one of your locations (distilled spirits and malt beverages only), show the registry number/brewer's notice number of each location where the product will be bottled. In this instance, Item 8 should reflect your principal place of business. You may also use Item 8a to reflect additional registry//brewer's notice numbers if the space provided in item 2 is insufficient. In this instance, cross out the words "Mailing Address, if different."

ITEM 3. Indicate the source of the product by checking the appropriate box.

ITEM 4. You must assign a sequential serial number beginning with the last two digits of the current calendar year to each application and its duplicate, not to exceed 6 characters; e.g., 12-1, 12-2, etc.

ITEM 5. Indicate the type of product by checking the appropriate box. For Sake, check the "wine" box.

ITEM 6. A brand name is the name under which the product is sold. If the product is not sold under a brand name, enter the name of the bottler, packer, or importer, as applicable.

ITEM 7. A fanciful name is a name that further identifies the product and is required for some specialty products. It is optional for other products.

ITEM 8. Indicate your company name and address exactly as they appear on your plant registry, basic permit, or brewer's notice (include your approved DBA or trade name if you use it on the label). In the case of distilled spirits and malt beverages that are bottled at more than one location, indicate your principal place of business address in this field.

ITEM 8a. You may enter a mailing address here if you receive mail at an address other than the address shown in Item 8.

ITEM 9. The term "Formula" encompasses the following pre-COLA product evaluations: domestic beverage alcohol formulas, pre-import approval letters, lab analyses, and submissions formerly known as statements of process (SOPs). A formula is a quantitative list of ingredients and a step-by-step method of manufacture for alcohol beverages (wine, distilled spirits, and malt beverages) requiring approval from TTB prior to production or importation as set out in Industry Circular 2007-4. TTB's regulatory authority for such products may also be found in 27 CFR parts 4, 5, 7, 19, 24, 25, and 26. Please visit http://www.ttb.gov/formulation/pre_cola.shtml for more information about when a formula is required. For any domestic or imported alcohol beverage product requiring formula approval, specify the TTB Formula ID/TTB ID number, or TTB lab number. A copy of the approved formula or pre-import approval letter must accompany this label application. If the formula approval was obtained electronically through Formulas Online, the system-generated TTB Formula ID number must be provided.

ITEM 10. You must list in this block each grape varietal (if any) that appears on wine labels.

ITEM 11. Fill in only if a wine appellation of origin is stated on the label.

ITEM 12. Provide the phone number of the person responsible for the application.

ITEM 13. You may provide the email address of the person who should receive TTB's response to this application. TTB will process and return all paper applications to this email address if one is provided.

ITEM 14. You must check "a" OR "b." You must also check "c" if you intend to bottle distilled spirits in a distinctive container. You must check "d" and enter the TTB ID number as shown in the upper left hand corner of the rejected application if you are submitting an application that was previously rejected. If you check "b": 1) you may only sell this product in the State where it is bottled AND 2) the statement "For sale in _____ only" (using State abbreviation) must appear on each container. We do not issue certificates of exemption for products imported in bottles or for malt beverages.

ITEM 15. The instructions for this item are on the front of the form.

ITEM 16. Enter date application is prepared or submitted.

ITEM 17. The applicant or authorized agent must sign in this block.

ITEM 18. The signer's name must be printed in this block.

IV. CONTACT INFORMATION

For Additional Information Contact:

Alcohol Labeling and Formulation Division (ALFD)
Alcohol and Tobacco Tax and Trade Bureau
1310 G. Street, NW., Box 12
Washington, DC 20005
Phone (202) 453–2250 OR 1–866–927–2533 (Toll Free)
Email contact form: https://www.ttb.gov/contact-alfd

V. ALLOWABLE REVISIONS TO APPROVED LABELS

Once a label receives TTB approval, you are permitted to make certain changes to that label without submitting it to TTB. The label(s) identified on and affixed to this certificate may be revised without resubmission as follows:

NOTE: Any revision(s) you make to your approved label(s) must be in compliance with the applicable regulations in 27 CFR parts 4, 5, 7, and 16, and any other applicable provision of law or regulation, including, but not limited to, the conditions set forth in the "Comments" below.

YOU MAY...	REVISION APPLIES TO			COMMENTS
	WINE	DISTILLED SPIRITS	MALT BEVERAGE	
1. Delete any non-mandatory label information, including text, illustrations, graphics, etc.	YES	YES	YES	If the non-mandatory information in question relates to other information that remains on the label, it is your responsibility to ensure that the remaining information is not misleading after the deletion.
2. Reposition any label information, including text, illustrations, graphics, etc.	YES	YES	YES	The repositioning must comply with any placement requirements applicable to mandatory information. For example, some types of mandatory information must appear on the brand label or must appear together with other label information.
3.a. Change the color(s) (background and text), shape and proportionate size of labels.	YES	YES	YES	All changes must comply with applicable regulations, and changes in spelling must not change the meaning of the previously approved information. All mandatory information must be readily legible and appear on a contrasting background. Any revisions that affect mandatory label information must also comply with placement rules and other applicable requirements for such information.
3.b. Change the type size and font, and make appropriate changes to the spelling (including punctuation marks, changing letters from upper case to lower case and vice versa, and abbreviations) of words, in	YES	YES	YES	
3.c. Change from an adhesive label to one where label information is etched, painted or printed directly on the container and vice versa.	YES	YES	YES	
3.d. Divide a single approved label into multiple labels on a container, or combine separate labels that were approved under a single COLA into a single label on a container, provided that the label or labels comply with any applicable placement requirements for mandatory information and all other relevant requirements.	YES	YES	YES	
3.e. Combine separate labels that were approved under a single COLA into a single label on a container, provided that the label complies with any applicable placement requirements for mandatory information and all other relevant requirements.	YES	YES	YES	
4. Change the stated percentages for blends of grape varietals and appellations of origin for wine labels.	YES	N/A	N/A	When used for any of these items, the total percentages for each element must equal 100%. You may not change the name of the stated varietals or appellations without submitting a new application.
5. Add, change or delete a vintage date for wine labels.	YES	N/A	N/A	If the vintage date is deleted, no reference to *"Vintage"* may be made on any label or other materials (e.g., caps, capsules, corks, etc.) affixed to the bottle. When adding a new vintage date, you must comply with al applicable regulations, including the requirements regarding appellations of origin.
6. Change the optional "produced" or "made" by statements on wine labels to "blended," "vinted," "cellared" or "prepared" by statements.	YES	N/A	N/A	
7. Add, change or delete the stated amount of acid and/or the pH level for wine labels.	YES	N/A	N/A	
8. Change the stated amounts of sugar at harvest and/or residual sugar for wine labels.	YES	N/A	N/A	See ATF Ruling 82-4 for policy regarding use of sugar content statements and when such statements are required.
9. Add or delete bonded winery or taxpaid wine bottling house number for wine labels.	YES	N/A	N/A	If used, the number must appear in direct conjunction with the bottler's name and address.
10. Change the net contents statement.	YES	YES	YES	Revisions must comply with all applicable regulations governing net content statements and standards of fill. Please ensure that all applicable type size requirements are met for each container size.
11. Change the mandatory statement of alcohol content, as long as the change is consistent with the labeled class and type designation, andall other labeling statements.	YES	YES	YES (Flavored Malt Beverages Only)	For example, you may change the alcohol content of a grape wine labeled with a varietal designation from 13 percent to 15 percent alcohol by volume even though it results in a change to the product's tax classification. However, if the product was designated and labeled as a "table wine," an alcohol content of 15 percent alcohol by volume would be inconsistent with the rules for use of that designation, so this change would not be permitted Similarly, a label bearing a "rum" designation may not be changed to state an alcohol content of less than 40 percent alcohol by volume. The revised alcohol content statement must be consistent with all other mandatory or optional labeling statements.
12. Add, delete, or change an optional statement of alcohol content for malt beverage labels.	N/A	N/A	YES	Malt beverages that contain alcohol derived from added flavors or other added nonbeverage ingredients (other than hops extract) containing alcohol are subject to mandatory alcohol content statement requirements.
13. Change the statement of percentage of neutral spirits and the name of the commodity from which a distilled spirit is produced.	N/A	YES	N/A	These changes must not result in a change to the class or type designation of the distilled spirits product.
14. Change the mandatory age statement, or delete or change anoptional age statement for distilled spirits labels.	N/A	YES	N/A	These changes must not result in a change to the class or type designation. See 27 CFR 5.141 through 5.166 and 27 CFR 5.74 for further information about age statements and minimum aging requirements applicable to certain classes and types of spirits.
15. Delete or change an optional age statement, including a barrelaging statement, for wine and malt beverage labels.	YES	N/A	YES	Statements of age on wine labels must comply with 27 CFR 4.39(b).
16. Add, delete, or change statements or information in order to comply with the requirements of the State in which the malt beverage is to be sold.	N/A	N/A	YES	Applies only to malt beverages sold in that particular state (including the District of Columbia or the Commonwealth of Puerto Rico).
17. Add a new Serving Facts statement or statement of average analysis, add a Serving Facts statement to replace a statement of average analysis, or change the numerical values for calories, carbohydrates, protein, and fat contained in an existing statement.	YES	YES	YES	The statement must be in compliance with TTB Ruling 2013-2 and TTB Ruling 2004-1. A new Serving Facts statement is an allowable revision only if it is in one of the formats that is set forth in the examples attached to TTB Ruling 2013-2.
18. Add, delete, or change stated bottling date, production date (day, month, and/or year) or freshness information including bottling, production or expiration dates or codes.	YES	YES	YES	Bottling dates added to wine labels must comply with 27 CFR 4.39(c).
19. Change the name or trade name to reflect a different name already approved for use by the responsible bonded wine cellar, taxpaid wine bottling house, distilled spirits plant, brewery, or importer. Change the address where it is within the same State.	YES	YES	YES	This means that a bonded wine cellar, taxpaid wine bottling house, distilled spirits plant, brewery or importer may revise the label to include the use of a name or trade name that is already approved for that particular industry member. The name or trade name must appear on the basic permit, brewer's notice, or other qualifying documents for the company to whom the original certificate was issued. If the name or trade name is also used as the brand name on the label, resulting in a change of brand name, you must submit a new application. The change in address is ONLY allowed for in-state moves or other changes to the COLA holder's address that have already been reflected on the industry member's basic permit, brewer's notice, or other qualifying documents.
20. Add, delete, or change the name and/or address of the foreign producer, bottler, or shipper.	YES	YES	YES	The producer, bottler, or shipper must be located in the same country originally shown.

21. Add, delete, or change the name, address, and/or trademark of the wholesaler, retailer, or persons for whom the product is imported or bottled.	YES	YES	YES	
22. Add, delete, or change bottle deposit information, or container recycling information or logos.	YES	YES	YES	
23. Add, delete, or change UPC barcodes and/or 2D mobile barcodes, e.g., QR codes or Microsoft Tags.	YES	YES	YES	Addition or change of UPC Code must be in compliance with Industry Circular 77-23. Any information retrieved from 2D barcodes must be in compliance with all applicable advertising regulations.
24. Add, delete, or change a Web site address, phone number, faxnumber, or zip code.	YES	YES	YES	
25. Add, delete, or change a lot or batch identification number or other serial numbers.	YES	YES	YES	
26. Add, delete, or change trademark, copyright symbols (e.g., TM, ©, ®), kosher symbols, company logos, and/or social media icons.	YES	YES	YES	Symbols, logos and icons may not violate TTB regulations. Advertisements on social media sites must be in compliance with all applicable advertising regulations.
27. Add, delete, or change optional information about awards or medals,or the signature of the brewer, winemaker, or distiller of the product.	YES	YES	YES	
28. Add, delete, or change holiday- and/or seasonal-themed graphics, artwork and/or salutations.	YES	YES	YES	Holiday/seasonal-themed information or graphics must not conflict with or qualify the mandatory information and must comply with all applicable regulations, including the rules governing prohibited practices.
29. Delete or change promotional sponsorship-themed graphics, logos, artwork, dates, event locations and/or other sponsorship-related information. (Examples: sports leagues, team organizations, annual sporting events, and annual or semi-annual festivals.) Delete or change charitable endorsement information toinclude information about the proceeds.	YES	YES	YES	If authorization by a third party was required for use of such promotional sponsorship-themed information on a label when first approved, it is the responsibility of the industry member to have any necessary documentation of authorization to cover the revisions to the approved label(s). The labeling statements may not create a misleading impression.
30. Add, delete, or change a label or sticker that provides information abouta rating or recognition provided by an organization (e.g., "Recognized as one of the top values in vodka by x Magazine" or "Rated as the best2012 wine by x Association"), as long as the rating or recognition reflects simply the opinion of the organization and does not make a specific substantive claim about the product or its competitors.	YES	YES	YES	These statements or graphics must not conflict with or qualify any mandatory information and must comply with all applicable laws and regulations. Substantive claims about the product or its competitors are not covered by this exemption.
31. Delete all organic references from the label.	YES	YES	YES	If you choose to delete one organic claim on a label on which you have received approval to make organic claims, then all organic claims, references and certification statements must be deleted on the revised label. The deletion of individual references or certification statements is not permitted without a new COLA.
32. Change an approved sulfite statement to any of these options: "*Contains Sulfites*", *"Contains (a) Sulfiting Agent*(s)", "*Contains [nameof specific sulfating agent*]", *"Contains Naturally Occurring and AddedSulfites"*; or "*Contains Naturally Occurring Sulfites."* "Sulphites" may be used in lieu of "Sulfites."	YES	YES	YES	A sulfite statement is required when sulfur dioxide or a sulfiting agent is detected at a level of 10 or more parts per million, measured as total sulfur dioxide.
33. Add, delete, or change information about the number of bottles that were "made," "produced," "brewed," or "distilled" in a batch; respectively.	YES	YES	YES	Example: *"100 bottles produced"*
34. Add, delete, or change between approved instructional statements about how best to consume or serve the product.	YES	YES	YES	Only the following statements are approved to be added to a label: *"Refrigerate After Opening"* *"Do Not Store In Direct Sunlight"*, *"Best If Frozen For____to____Hours"*, *"Shake Well"*, *"Pour Over Ice"*, *"Best When Chilled"*, *"Best Served Chilled"*, *"Serve Chilled"*, *"Serve at Room Temperature"* *"Best Before_____"* *"Consume By_____"*
35. Add, delete, or change between approved responsibility statements.	YES	YES	YES	Only the following statements are approved to be added to a label: *"Drink Responsibly"* *"Enjoy Responsibly"* *"Enjoy in Moderation"* *"Sip Responsibly"*
36. Add, delete, or change between the listed sustainable farming, environmental, and eco-friendly claims.	YES	YES	YES	These statements must not conflict with or qualify any mandatory information and must comply with all applicable laws and regulations. It is the responsibility of the industry member to have any necessary documentation of authorization to cover the revisions to the approved label(s). Only the following statements are approved to be added to a label: *"Sustainable Farming"* *"Sustainably Grown"* *"Carbon Neutral"* *"Environmentally Friendly"* *"Vegan-Friendly"* *"Eco-Friendly"* *"Biodynamic"* *"Salmon Safe"* *"Don't Litter"* *"Environmentally Conscious"* *"Eco-Conscious"*
37. Add, delete, or change between approved food pairing recommendations.	YES	YES	YES	Only the following food pairing statements are approved to be added to a label: *"Best paired with [name of food]"* *"Best served with [name of food]"*
38. Add, change, or delete opening instructions for a box wine container.	YES	N/A	N/A	The instructions may include graphics limited to showing the step-by-step guidance.
39. Add, change, or delete a statement providing tapping instructions for a keg.	YES	N/A	YES	
40. Add to, change on, or delete from the label or container the name (or name and address) of the container manufacturer.	YES	YES	YES	
41. Change the stated numerical representation of the International Bitterness Units or Original Gravity.	N/A	N/A	YES	

If you have questions about what is mandatory information and what is non-mandatory information, please consult the applicable regulations in 27 CFR parts 4, 5, 7, and 16, or contact TTB. See Section IV for how to contact TTB.

PAPERWORK REDUCTION ACT NOTICE

This request is in accordance with the Paperwork Reduction Act of 1995. We collect this information to verify your compliance with the Federal laws and regulations we administer for the labeling of alcohol beverages. The information is mandated by statute (27 U.S.C. 205) and is used to obtain a benefit.

We estimate 31 minutes as the average burden for you to complete this form depending on your individual circumstances. You may comment to us about the accuracy of this burden estimate and suggest ways for us to reduce the burden. Address your comments or suggestions to the Paperwork Reduction Act Officer, Regulations and Rulings Division, Alcohol and Tobacco Tax and Trade Bureau, 1310 G Street, NW., Box 12, Washington, DC 20005 (please do not mail completed forms to this address).

We may not conduct this collection of information, and you are not required to respond to this request, unless it displays a valid, current OMB control number.

DISCLOSURE STATEMENT

We require this information under the authority of 27 U.S.C. 205(e). You must disclose this information so we may verify your compliance with the Federal laws and regulations we administer for the labeling of alcohol beverages.

We use this information for the purposes described in the preceding paragraph. In addition, the information may be disclosed to other Federal, State, and local law enforcement and regulatory agency personnel to verify information on the application and to aid in the performance of their duties. The information may further be disclosed to the Justice Department if it appears that the furnishing of false information may contribute to a violation of Federal law. If you fail to supply complete information, there will be a delay in the processing of your application.

After TTB issues a certificate of label approval, a certificate of exemption from label approval, or a distinctive liquor bottle approval, copies of theapproved applications are made available for public inspection.